

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION**

DEBRA NELSON,

Plaintiff,

v.

Curtiss Wright Electro Mechanical
Corp. d/b/a Curtiss-Wright Steam and
Air Solutions,
STEPHANIE LANIER, and
SHANE SABLITSKY,

Defendants.

Case No. 2:25-cv-00405-RMG-MGB

AMENDED ANSWER TO PLAINTIFF’S FOURTH AMENDED COMPLAINT¹

COME NOW Defendants Curtiss Wright Electro Mechanical Corporation d/b/a Curtiss-Wright Steam and Air Solutions (“Curtiss-Wright”), Stephanie Lanier, and Shane Sablitsky (“Defendants”), by and through their undersigned counsel, and hereby respond to the allegations in Plaintiff’s Fourth Amended Complaint (“Amended Complaint”) as follows:

FOR A FIRST DEFENSE

1. Regarding the allegations in Paragraph 1 of the Amended Complaint, Defendants admit only that Plaintiff purports to assert claims under Title VII but deny any wrongdoing under Title VII and further deny that Plaintiff is entitled to any damages or other relief in this action.

2. Regarding the allegations in Paragraph 2 of the Amended Complaint, Defendants admit only that Plaintiff purports to assert claims under 42 U.S.C. § 1981 but deny any wrongdoing

¹ Defendants submit this Amended Answer to respond to Plaintiff’s causes of action that survived Defendants’ Partial Motion to Dismiss.

under 42 U.S.C. § 1981 and further deny that Plaintiff is entitled to any damages or other relief in this action.

3. Regarding the allegations in Paragraph 3 of the Amended Complaint, Defendants admit only that Plaintiff purports to bring this action pursuant to the South Carolina Human Affairs Law. Defendants deny any wrongdoing under the South Carolina Human Affairs Law and further deny that Plaintiff is entitled to any damages or other relief in this action.

4. Regarding the allegations in Paragraph 4 of the Amended Complaint, Defendants admit only that this Court has jurisdiction over certain claims alleged in the lawsuit. Defendants deny any inference arising from these allegations that they have violated these laws or that Plaintiff is entitled to any remedy or relief from Defendants.

5. Defendants deny the allegations contained in Paragraph 5 of the Amended Complaint.

6. Defendants deny the allegations contained in Paragraph 6 of the Amended Complaint.

7. Regarding the allegations of Paragraph 7 of the Amended Complaint, Defendants admit only that Plaintiff was an at-will employee of Curtiss-Wright Electro-Mechanical Corporation. Defendants deny the remaining allegations in Paragraph 7.

8. Regarding the allegations in Paragraph 8 of the Amended Complaint, Defendants admit only that Plaintiff purports to assert claims under the common law of South Carolina but deny any wrongdoing under South Carolina common law and further deny that Plaintiff is entitled to any damages or other relief in this action.

9. Regarding the allegations in Paragraph 9 of the Amended Complaint, Defendants admit only that Plaintiff purports to assert claims under state and federal law but deny any wrongdoing under state and federal law and further deny that Plaintiff is entitled to any damages or other relief in this action.

AS TO “PARTIES”²

10. Defendants admit the allegations of Paragraph 10 of the Amended Complaint upon information and belief.

11. Defendants admit the allegations of Paragraph 11 of the Amended Complaint.

12. Regarding the allegations in Paragraph 12 of the Amended Complaint, Defendants admit only that Curtiss-Wright conducts business affecting commerce. Defendants deny the remaining allegations in Paragraph 12.

13. Defendants admit the allegations in Paragraph 13 of the Amended Complaint as to Defendant Curtiss-Wright.

14. Defendants admit the allegations in Paragraph 14 of the Amended Complaint as to Defendant Curtiss-Wright.

15. Defendants admit the allegations in Paragraph 15 of the Amended Complaint.

16. Defendants admit the allegations in Paragraph 16 of the Amended Complaint.

AS TO “JURISDICTION AND VENUE”

17. Regarding the allegations in Paragraph 17 of the Amended Complaint, Defendants admit that this Court has subject matter jurisdiction over this action. Defendants deny any inference arising from the recitation of jurisdiction that Plaintiff is entitled to any remedy or relief from Defendants.

18. Defendants admit that this Court has federal question jurisdiction over this action but deny that they violated the referenced statutes or claims in any respect and deny that Plaintiff is entitled to any damages or other relief in this action.

² The section headings used in the Amended Complaint are repeated in this Answer solely as a matter of convenience and do not constitute an admission.

19. Regarding the allegations of Paragraph 19 of the Amended Complaint, Defendants admit only that the Court has jurisdiction over this action. Defendants deny the remaining allegations of Paragraph 19.

20. Regarding the allegations of Paragraph 20 of the Amended Complaint, Defendants admit that venue is proper but deny any remaining allegations in Paragraph 20.

AS TO “PROCEDURAL PREREQUISITES”

21. Regarding the allegations of Paragraph 21 of the Amended Complaint, Defendants admit only that Plaintiff filed multiple charges of discrimination against Curtiss-Wright with the Equal Employment Opportunity Commission (“EEOC”) but deny the allegations in those charges and deny the remaining allegations in Paragraph 21.

22. Defendants lack knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 22 of the Amended Complaint.

23. Defendants lack knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 23 of the Amended Complaint regarding when Plaintiff contacted the EEOC. Defendants deny the remaining allegations in Paragraph 23.

24. Defendants lack knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 24 of the Amended Complaint.

25. Regarding the allegations in Paragraph 25 of the Amended Complaint, Defendants admit that Plaintiff filed a charge of discrimination against Curtiss-Wright with the EEOC on May 2, 2024, bearing charge number 14C-2024-00464 but deny the allegations in that charge and further deny the remaining allegations in Paragraph 25.

26. Regarding the allegations of Paragraph 26 of the Amended Complaint, Defendants admit only that Plaintiff’s May 2, 2024, EEOC Charge contains the allegations quoted in

Paragraph 26, the full content of which speaks for itself, but deny those allegations and deny the remaining allegations in Paragraph 26.

27. Defendants lack knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 27.

28. Defendants admit allegations in Paragraph 28 of the Amended Complaint.

29. Defendants are without knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 29 of the Amended Complaint.

AS TO “POLICIES OF CURTISS WRIGHT CORPORATION”

Regarding the unnumbered allegations entitled “Policies of Curtiss Wright Corporation,” appearing on page 4 and page 5 of the Amended Complaint, Defendants admit only that the quoted language appears to be taken from policies of Curtiss-Wright Electro-Mechanical Corporation, the full content of which speaks for itself. Defendants deny any inference that Curtiss-Wright failed to follow these policies and deny any remaining allegations under the section entitled “Policies of Curtiss Wright Corporation” on page 4 and page 5 of the Amended Complaint.

AS TO “FACTUAL BACKGROUND”

30. Defendants admit the allegations in Paragraph 30 of the Amended Complaint on information and belief.

31. Defendants admit the allegations of Paragraph 31 of the Amended Complaint on information and belief.

32. Regarding the allegations of Paragraph 32 of the Amended Complaint, Defendants admit that Plaintiff was hired by Curtiss-Wright Electro-Mechanical Corporation in April 2022 as an NDT technician.

33. Defendants deny the allegations in Paragraph 33 of the Amended Complaint.

34. Regarding the allegations in Paragraph 34 of the Amended Complaint, Defendants admit only that Plaintiff filed an internal complaint regarding her treatment by an executive assistant in November 2022. Defendants deny the remaining allegations in Paragraph 34.

35. Defendants deny the allegations in Paragraph 35 of the Amended Complaint.

36. Defendants lack knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 36 of the Amended Complaint.

37. Regarding the allegations of Paragraph 37 of the Amended Complaint, Defendants admit only that on or about May 19, 2023, Plaintiff had a verbal interaction with Brian Fogarty. Defendants deny the remaining allegations in Paragraph 37.

38. Regarding the allegations of Paragraph 38 of the Amended Complaint, Defendants admit only that Plaintiff reported an incident involving Mr. Fogarty to Human Resources. Defendants deny the remaining allegations in Paragraph 38.

39. Regarding the allegations of Paragraph 39 of the Amended Complaint, Defendants admit that Plaintiff filed her first charge of discrimination on May 31, 2023, as set forth in Paragraph 39 but deny the allegations in that charge and deny the remaining allegations in Paragraph 39.

40. Regarding the allegations of Paragraph 40 of the Amended Complaint, Defendants admit only that the EEOC issued the right to sue regarding the first charge on June 5, 2023, but deny the remaining allegations in Paragraph 40.

41. Regarding the allegations of Paragraph 41 of the Amended Complaint, Defendants admit only that on or about June 20, 2023, Plaintiff sent a letter to the CEO of Curtiss-Wright. Defendants deny the allegations contained in that letter and further deny the remaining allegations in Paragraph 41.

42. Regarding the allegations of Paragraph 42 of the Amended Complaint, Defendants admit only that Plaintiff had contacted the CEO of Curtiss-Wright, but Defendants lack knowledge or information sufficient to form a belief as to the truth of the remaining allegations in Paragraph 42.

43. Regarding the allegations of Paragraph 43 of the Amended Complaint, Defendants admit only that Plaintiff complained about Patrick Ingram to Human Resources. Defendants deny the remaining in Paragraph 43.

44. Defendants deny the allegations in Paragraph 44 of the Amended Complaint.

45. Regarding the allegations of Paragraph 45 of the Amended Complaint, Defendants admit only that Stephanie Lanier told Plaintiff that she was unable to substantiate Plaintiff's allegations of bullying by Fogarty. Defendants deny the remaining allegations in Paragraph 45.

46. Regarding the allegations of Paragraph 46 of the Amended Complaint, Defendants admit only that Plaintiff attended a meeting on or about July 25, 2023, regarding the work environment. Defendants admit that Plaintiff was told that the incident with Fogarty was addressed. Defendants deny the remaining allegations of Paragraph 46.

47. Regarding the allegations of Paragraph 47 of the Amended Complaint, Defendants admit only that on or about July 27, 2023, Plaintiff emailed Lanier and Coleman, the terms of which email speak for itself. Defendants deny the remaining allegations in Paragraph 47.

48. Defendants admit the allegations of Paragraph 48 of the Amended Complaint upon information and belief.

49. Defendants admit the allegations of Paragraph 49 of the Amended Complaint.

50. Regarding the allegations of Paragraph 50 of the Amended Complaint, Defendants admit only that Plaintiff filed a complaint with the Naval Inspector General (NAVISGEN) on or

about August 10, 2023. Defendants deny the allegations contained in that complaint. Defendants deny the remaining allegations in Paragraph 50.

51. Regarding the allegations of Paragraph 51 of the Amended Complaint, Defendants admit only that Plaintiff filed a complaint to NAVISGEN in August 2023 but deny the allegations contained therein. Defendants lack knowledge or information sufficient to form a belief as to the truth of the remaining allegations in Paragraph 51 and therefore deny the same.

52. Regarding the allegations of Paragraph 52 of the Amended Complaint, Defendants admit only that Mary Workoff last worked for Curtiss-Wright in September 2023.

53. Regarding the allegations of Paragraph 53 of the Amended Complaint, Defendants deny that Plaintiff's timecard was altered in September of 2023 except so far that Plaintiff requested it be altered.

54. Regarding the allegations of Paragraph 54 of the Amended Complaint, Defendants admit only that Plaintiff filed a complaint through EthicsPoint on September 26, 2023. Defendants deny the allegations asserted in that complaint and deny the remaining allegations in Paragraph 54.

55. Defendants are without knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 55 of the Amended Complaint.

56. Regarding the allegations of Paragraph 56 of the Amended Complaint, Defendants admit only that Plaintiff filed a second charge of discrimination with the EEOC on October 5, 2023, which contain the language quoted in Paragraph 56, the full content of which speak for itself. Defendants deny the allegations contained in that charge and deny the remaining allegations in Paragraph 56.

57. Defendants admit the allegations in Paragraph 57 of the Amended Complaint.

58. Defendants admit the allegations in Paragraph 58 of the Amended Complaint.

59. Regarding the allegations of Paragraph 59 of the Amended Complaint, Defendants admit only that Plaintiff filed another complaint on November 7, 2023. Defendants deny the allegations contained therein and deny the remaining allegations in Paragraph 59.

60. Regarding the allegations of Paragraph 60 of the Amended Complaint, Defendants admit that Plaintiff was given a final written warning on November 14, 2023. Defendants further admit that Plaintiff confronted Stephanie Lanier and that Plaintiff was suspended for this altercation while on a final warning. Defendants deny the remaining allegations in Paragraph 60.

61. Defendants lack knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 61 of the Amended Complaint regarding what Plaintiff was informed by a co-worker. Defendants deny that the statements allegedly made by the co-worker are true.

62. Regarding the allegations in Paragraph 62 of the Amended Complaint, Defendants admit only that if Plaintiff had requested her personal items from her locker, they would have been mailed to her. Defendants deny the remaining allegations in Paragraph 62.

63. Regarding the allegations of Paragraph 63 of the Amended Complaint, Defendants admit only that Plaintiff's termination letter was dated November 21, 2023.

64. Defendants deny the allegations in Paragraph 64 of the Amended Complaint.

65. Regarding the allegations of Paragraph 65 of the Amended Complaint, Defendants admit that Plaintiff called Curtiss-Wright in November of 2023, following her termination. Defendants deny the remaining allegations in Paragraph 65.

66. Defendants deny the allegations in Paragraph 66 of the Amended Complaint.

67. Defendants lack knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 67 of the Amended Complaint.

68. Defendants lack knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 68 of the Amended Complaint.

69. Defendants deny the allegations in Paragraph 69 of the Amended Complaint.

70. Defendants deny the allegations in Paragraph 70 of the Amended Complaint.

71. Defendants deny the allegations in Paragraph 71 of the Amended Complaint.

72. Defendants deny the allegations in Paragraph 72 of the Amended Complaint.

73. Defendants deny the allegations in Paragraph 73 of the Amended Complaint.

74. Defendants deny the allegations in Paragraph 74 of the Amended Complaint.

75. Defendants deny the allegations in Paragraph 75 of the Amended Complaint.

76. Defendants deny the allegations in Paragraph 76 of the Amended Complaint.

77. Defendants deny the allegations in Paragraph 77 of the Amended Complaint.

78. Defendants deny the allegations in Paragraph 78 of the Amended Complaint.

79. Defendants deny the allegations in Paragraph 79 of the Amended Complaint and further deny that Plaintiff is entitled to any remedy or relief from Defendants.

80. Defendants deny the allegations in Paragraph 80 of the Amended Complaint.

81. Regarding the allegations of Paragraph 81 of the Amended Complaint, Defendants admit only that Plaintiff was issued certain policies and procedures by Curtiss-Wright.

82. Defendants deny the allegations in Paragraph 82 of the Amended Complaint.

83. Defendants deny the allegations in Paragraph 83 of the Amended Complaint and further deny that Plaintiff is entitled to any remedy or relief from Defendants.

84. Defendants deny the allegations in Paragraph 84 of the Amended Complaint.

85. Defendants deny the allegations in Paragraph 85 of the Amended Complaint.

86. Defendants deny the allegations in Paragraph 86 of the Amended Complaint.

87. Defendants deny the allegations in Paragraph 87 of the Amended Complaint.

88. Defendants deny the allegations in Paragraph 88 of the Amended Complaint.

89. Defendants deny the allegations in Paragraph 89 of the Amended Complaint.

90. Defendants deny the allegations in Paragraph 90 of the Amended Complaint and further deny that Plaintiff is entitled to any remedy or relief from Defendants.

91. Defendants deny the allegations in Paragraph 91 of the Amended Complaint and further deny that Plaintiff is entitled to any remedy or relief from Defendants.

92. Defendants deny the allegations in Paragraph 92 of the Amended Complaint.

93. Defendants deny the allegations in Paragraph 93 of the Amended Complaint.

94. Defendants deny the allegations in Paragraph 94 of the Amended Complaint.

95. Regarding the allegations in Paragraph 95 of the Amended Complaint, Defendants admit only that Plaintiff purports to assert entitlement to compensatory damages under 42 U.S.C. § 1981 but deny any wrongdoing under 42 U.S.C. § 1981 and further deny that Plaintiff is entitled to any remedy or relief whatsoever.

96. Regarding the allegations in Paragraph 96 of the Amended Complaint, Defendants admit only that Plaintiff purports to assert entitlement to punitive damages under 42 U.S.C. § 1981 but deny any wrongdoing under 42 U.S.C. § 1981 and further deny that Plaintiff is entitled to any remedy or relief whatsoever.

97. Regarding the allegations in Paragraph 97 of the Amended Complaint, Defendants admit only that Plaintiff purports to assert entitlement to back pay and fringe benefits but deny that Plaintiff is entitled to any relief under 29 U.S.C. § 626(b) and further deny that Plaintiff is entitled to any remedy or relief whatsoever.

98. Defendants lack knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 98 and therefore deny the same.

99. Defendants lack knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 99 and therefore deny the same.

100. Defendants deny the allegations in Paragraph 100 of the Amended Complaint.

AS TO “CLAIMS FOR RELIEF”

As To “Count I: Race Discrimination (Title VII and 42 U.S.C. § 1981)”

101. In response to Paragraph 101 of the Amended Complaint, Defendants incorporate their responses to Paragraphs 1 through 100 as if fully set forth herein.

102. Defendants deny the allegations contained in Paragraph 102 of the Amended Complaint.

103. Defendants deny the allegations in Paragraph 103 of the Amended Complaint.

104. Defendants deny the allegations contained in Paragraph 104 of the Amended Complaint.

As To “Count II: Sex Discrimination (Title VII)”

105. In response to Paragraph 105 of the Amended Complaint, Defendants incorporate their responses to Paragraphs 1 through 104 as if fully set forth herein.

106. Defendants deny the allegations contained in Paragraph 106 of the Amended Complaint.

107. Defendants deny the allegations in Paragraph 107 of the Amended Complaint.

As To “Count III: Age Discrimination (ADEA)”

108. In response to Paragraph 108 of the Amended Complaint, Defendants incorporate their responses to Paragraphs 1 through 107 as if fully set forth herein.

109. Defendants admit the allegations of Paragraph 109 of the Amended Complaint on information and belief.

110. Defendants deny the allegations contained in Paragraph 110 of the Amended Complaint.

111. Defendants deny the allegations contained in Paragraph 111 of the Amended Complaint.

As To “Count IV: Hostile Work Environment (Title VII)”

112. In response to Paragraph 113 of the Amended Complaint, Defendants incorporate their responses to Paragraphs 1 through 112 as if fully set forth herein.

113. The allegations in Paragraph 116 of the Amended Complaint state legal conclusions to which no responsive pleading is required. To the extent a response is required, the allegations are denied.

114. Defendants deny the allegations in Paragraph 114 of the Amended Complaint.

115. Defendants deny the allegations in Paragraph 115 of the Amended Complaint.

As To “Count V: Retaliation (Title VII & ADEA)”

In response to the unnumbered paragraph immediately following “Count V,” Defendants incorporate their responses to Paragraphs 1 through 115 as if fully set forth herein.

116. The allegations in Paragraph 116 of the Amended Complaint state legal conclusions to which no responsive pleading is required. To the extent a response is required, the allegations are denied.

117. Regarding the allegations in Paragraph 117 of the Amended Complaint, Defendants admit only that Plaintiff’s employment was terminated. Defendants deny the remaining allegations of Paragraph 117.

118. Defendants deny the allegations in Paragraph 118 of the Amended Complaint.

As To “Count VI: Slander (State Law)”

119. In response to Paragraph 119 of the Amended Complaint, Defendants incorporate their responses to Paragraphs 1 through 118 as if fully set forth herein.

120. The allegations in Paragraph 120 of the Amended Complaint state legal conclusions to which no responsive pleading is required. To the extent a response is required, the allegations are denied.

121. Defendants deny the allegations in Paragraph 121 of the Amended Complaint.

122. Defendants deny the allegations in Paragraph 122 of the Amended Complaint.

As To “Count VII: Intentional Interference with Contractual Relations (State Law)”

123. In response to Paragraph 123 of the Amended Complaint, Defendants incorporate their responses to Paragraphs 1 through 122 as if fully set forth herein.

124. Regarding the allegations of Paragraph 124 of the Amended Complaint, Defendants admit only that Plaintiff was an at-will employee of Curtiss-Wright. Defendants deny that Plaintiff had an employment contract.

125. Regarding the allegations of Paragraph 125 of the Amended Complaint, Defendants admit only that Lanier and Sablotsky were aware that Plaintiff was an employee of Curtiss-Wright. Defendants deny the remaining allegations of Paragraph 125.

126. Defendants deny the allegations in Paragraph 126 of the Amended Complaint.

127. Defendants deny the allegations in Paragraph 127 of the Amended Complaint and deny that Plaintiff is entitled to any remedy or relief from Defendants.

As To “Count VIII: Whistleblower Retaliation (41 U.S.C. §4712; 31 U.S.C. §3730(h))”

128. In response to Paragraph 128 of the Amended Complaint, Defendants incorporate their responses to Paragraphs 1 through 127 as if fully set forth herein.

129. Regarding the allegations in Paragraph 129 of the Amended Complaint, Defendants admit only that Plaintiff filed complaints with the Department of the Navy Inspector General. Defendants deny the remaining allegations of Paragraph 129.

130. Defendants deny the allegations in Paragraph 130 of the Amended Complaint.

As To “Count IX: Title VI Violation (42 U.S.C. §2000d)”

131. In response to Paragraph 131 of the Amended Complaint, Defendants incorporate their responses to Paragraphs 1 through 130 as if fully set forth herein.

132. Defendants deny the allegations in Paragraph 132 of the Amended Complaint.

133. Defendants deny the allegations in Paragraph 133 of the Amended Complaint.

**As To “Count X: Invasion of Privacy – Intrusion Upon Seclusion
(State Law)”**

134. In response to Paragraph 134 of the Amended Complaint, Defendants incorporate their responses to Paragraphs 1 through 133 as if fully set forth herein.

135. Defendants deny the allegations in Paragraph 135 of the Amended Complaint.

136. Defendants deny the allegations in Paragraph 136 of the Amended Complaint.

**As To “Count XI: Illegal Interception of Communications
(Federal Wiretap Act, 18 U.S.C. §2511)”**

137. In response to Paragraph 137 of the Amended Complaint, Defendants incorporate their responses to Paragraphs 1 through 136 as if fully set forth herein.

138. Defendants deny the allegations in Paragraph 138 of the Amended Complaint.

**As To “Count XII: Intentional Infliction of Emotional Distress
(State Law)”**

139. In response to Paragraph 139 of the Amended Complaint, Defendants incorporate their responses to Paragraphs 1 through 138 as if fully set forth herein.

140. Defendants deny the allegations in Paragraph 140 of the Amended Complaint.

141. Defendants deny the allegations in Paragraph 141 of the Amended Complaint.

142. Defendants deny the allegations in Paragraph 142 of the Amended Complaint and further deny that Plaintiff is entitled to any remedy or relief from Defendants.

As To “Count XIII: Breach of Contract (State Law)”

143. The allegations in Paragraphs 143 through 145 have been dismissed.

As To “Count XIV: Civil Conspiracy (42 U.S.C. §1985(3))”

146. In response to Paragraph 146 of the Amended Complaint, Defendants incorporate their responses to Paragraphs 1 through 145 as if fully set forth herein.

147. Defendants deny the allegations in Paragraph 147 of the Amended Complaint.

148. Defendants deny the allegations in Paragraph 148 of the Amended Complaint.

149. Regarding Plaintiff’s unnumbered Prayer for Relief, Defendants deny that Plaintiff is entitled to any of the relief sought in that paragraph, including subparts (a) through (g) or to any other remedy or relief from Defendants.

150. Regarding Plaintiff’s Demand for a jury trial, Defendants admit only that Plaintiff is entitled to a jury on any legal claims and issues to the extent those claims survive pretrial dismissal. All equitable claims and issues should be decided by the Court without the aid of a jury.

151. Defendants deny each and every allegation of the Amended Complaint not specifically admitted herein.

FOR A SECOND DEFENSE

Plaintiff's Amended Complaint should be dismissed, in whole or in part, for failure to state a claim upon which relief can be granted.

FOR A THIRD DEFENSE

Some or all of the claims in the Amended Complaint should be barred as untimely as they were not presented within the ninety (90) days after the Equal Employment Opportunity Commission (EEOC) issued the right to sue notice on such claims.

FOR A FOURTH DEFENSE

Plaintiff is barred from asserting any claims or recovering damages under Title VII based on any claims or allegations that are beyond the scope of the EEOC Charge of Discrimination filed by the Plaintiff on May 2, 2024.

FOR A FIFTH DEFENSE

Plaintiff is barred from asserting any claims or recovering damages under Title VII based on any claims or allegations that occurred more than 300 days prior to filing her Charge of Discrimination on May 2, 2024.

FOR A SIXTH DEFENSE

Some or all of the relief sought by Plaintiff in the Amended Complaint may be barred by the equitable doctrines of estoppel, laches, waiver, and/or unclean hands.

FOR A SEVENTH DEFENSE

All actions taken by Defendants with respect to Plaintiff were made based on legitimate, non-discriminatory, and non-retaliatory considerations.

FOR AN EIGHTH DEFENSE

Defendants have made good-faith efforts to prevent discrimination and retaliation in the

workplace and to comply with Title VII and Section 1981. In the event that Defendants are determined to have violated Title VII or Section 1981, which Defendants deny, such violation was in good faith and Defendants had reasonable grounds for believing that their actions did not violate such statutes.

FOR A NINTH DEFENSE

To the extent that Plaintiff purports to demonstrate that an improper motive played a part in any challenged employment decision, the same employment decision would have been made in the absence of any alleged improper motive.

FOR A TENTH DEFENSE

Any claim for punitive damages is barred because Defendants, at all times, acted in a reasonably prudent manner, without any intent to harm Plaintiff and without malice or reckless indifference to Plaintiff's rights.

FOR AN ELEVENTH DEFENSE

Any award of punitive damages would violate the due process clauses of the Fifth and Fourteenth Amendments to the Constitution of the United States. Therefore, Plaintiff's claim for punitive damages is barred.

FOR A TWELFTH DEFENSE

Any award of damages should be barred or limited to the extent that the relief demanded by Plaintiff is improper, inappropriate, exceeds the scope of permissible damages and remedies, and/or otherwise is not available under the laws upon which his claims rest. Alternatively, in the event that Plaintiff is granted relief under her claims, such relief should be limited by the applicable provisions of 42 U.S.C. Section 1981, and/or any other state or federal law.

FOR A THIRTEENTH DEFENSE

Plaintiff's claim for damages should be limited by the applicable provisions of South Carolina statutory and common law, specifically including, but not limited to, S.C. Code Ann. § 5-32-530.

FOR A FOURTEENTH DEFENSE

Plaintiff's claim for intentional infliction of emotional distress is barred because the actions alleged are not extreme or outrageous, nor do they constitute behavior a reasonable person would find intolerable.

FOR A FIFTEENTH DEFENSE

Plaintiff's claim for intentional infliction of emotional distress is barred because the alleged emotional distress is not so severe as to meet the applicable legal standard.

FOR A SIXTEENTH DEFENSE

To the extent Plaintiff purports to claim that alleged disclosures made to governmental entities played a part in any challenged employment decision, the same employment decision would have been made in the absence of any such alleged disclosures.

FOR A SEVENTEENTH DEFENSE

Plaintiff's Amended Complaint is barred, in whole or in part, by the applicable statute of limitations.

FOR AN EIGHTEENTH DEFENSE

Plaintiff lacks standing to pursue her federal wiretap cause of action against Defendants.

FOR A NINETEENTH DEFENSE

Some or all of Plaintiff's claims cannot be litigated because they are beyond the scope of Plaintiff's administrative charge, were not subject to administrative investigatory or conciliation

processes, and were not included in any determination by the Equal Employment Opportunity Commission.

FOR A TWENTIETH DEFENSE

Plaintiff did not engage in protected activity within the meaning of 41 U.S.C. § 4712 or 31 U.S.C. § 3730(h).

FOR A TWENTY-FIRST DEFENSE

Any action taken by Defendants with respect to Plaintiff's employment was done for legitimate, non-retaliatory reasons unrelated to any alleged protected activity.

FOR A TWENTY-SECOND DEFENSE

Plaintiff's claims are barred, in whole or in part, by Plaintiff's failure to exhaust administrative remedies.

FOR A TWENTY-THIRD DEFENSE

Plaintiff's employment, at all times relevant to this action, was at-will and could be terminated by either party for any reason and at any time, with or without notice.

FOR A TWENTY-FOURTH DEFENSE

Defendants would have made the same decisions regarding Plaintiff, regardless of any alleged protected status or activity.

FOR A TWENTY-FIFTH DEFENSE

No employment contract, agreement, or covenant, either verbal or written, express or implied, existed at any time between Plaintiff and Defendants.

FOR A TWENTY-SIXTH DEFENSE

At all relevant times, Defendants' written personnel policies were not intended to be and did not constitute a contract of employment.

FOR A TWENTY-SEVENTH DEFENSE

Plaintiff's claims for damages are barred or reduced by Plaintiff's failure to mitigate any alleged damages by using reasonable diligence to seek and obtain comparable employment elsewhere.

FOR A TWENTY-EIGHTH DEFENSE

Plaintiff's claims are barred, in whole or in part, due to after acquired evidence.

FOR A TWENTY-NINTH DEFENSE

Plaintiff's invasion of privacy claim and/or intentional infliction of emotional distress claim are barred by the workers' compensation exclusivity doctrine

FOR A THIRTIETH DEFENSE

At all relevant times, were not receiving federal funding for the primary purpose of providing employment, and so Plaintiff's Title VI claim fails.

FOR A THIRTY-FIRST DEFENSE

To the extent Plaintiff is attempting to assert any federal claims against the individual Defendants Lanier and Sablotsky, those individuals are not proper parties to those claims.

FOR A THIRTY-SECOND DEFENSE

Plaintiff's whistleblower claim under 41 U.S.C. § 4712 and 31 U.S.C. § 3730(h) is duplicative of and preempted by Title VII.

FOR A THIRTY-THIRD DEFENSE

To the extent that Plaintiff is asserting slander claims against Defendants Lanier and Sablotsky, any such allegedly slanderous statement, if made, is true or was believed to be true at the time it was made.

FOR A THIRTY-FOURTH DEFENSE

To the extent that Plaintiff is asserting slander claims against Defendants Lanier and Sablotsky, any such allegedly slanderous statements, if made were qualified or conditionally privileged in the employment context and were made without malice.

FOR A THIRTY-FIFTH DEFENSE

To the extent that Plaintiff is asserting tortious interference claims against the individual Defendants Sablotsky and Lanier, Sablotsky and Lanier are agents of Defendant Curtiss-Wright and are not third parties in the context of Plaintiff's at-will employment.

FOR A THIRTY-SIXTH DEFENSE

At all relevant times, the individual defendants Sablotsky and Lanier were acting within the scope of their employment.

FOR A THIRTY-SEVENTH DEFENSE

Defendants took prompt and appropriate action on each of Plaintiff's claims of harassment.

FOR A THIRTY-EIGHT DEFENSE

Defendants reserve the right to assert further defenses upon discovery of facts not previously known.

WHEREFORE, having fully answered Plaintiff's Fourth Amended Complaint, Defendants pray that:

- A. The Court enters judgment in Defendants' favor;
- B. Plaintiff's Amended Complaint be dismissed with prejudice;
- C. The Court awards Defendants all costs, expenses, fees, and damages that may arise with the defense of Plaintiff's Amended Complaint; and
- D. The Court awards Defendants such further relief as it deems just and proper.

Respectfully submitted this 16th day of January 2026.

s/ T. Chase Samples

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CERTIFICATE OF SERVICE

The undersigned certifies that on January 16, 2026, a copy of the foregoing **DEFENDANTS' AMENDED ANSWER TO PLAINTIFF'S FOURTH AMENDED COMPLAINT**, has been served upon the following via email and United States Mail, postage prepaid and addressed to:

Debra Nelson

Pro Se Plaintiff

s/ T. Chase Samples

T. Chase Samples